

Court No. - 39

Case :- WRIT - C No. - 23940 of 2022

Petitioner :- Rkg Industries Llp

Respondent :- Uttar Pradesh Power Corporation Limited And 4 Others

Counsel for Petitioner :- Sandeep Arora

Counsel for Respondent :- CSC, Baleshwar Chaturvedi, Krishna Agarawal

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Vipin Chandra Dixit, J.

Sri Baleshwar Chaturvedi learned counsel has put in appearance on behalf of the respondent.

A request for adjournment has been made on behalf of Sri Sandeep Arora learned counsel for the petitioner.

Put up this matter as fresh on 26.09.2022.

Order Date :- 14.9.2022

Himanshu

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Respondent :- Uttar Pradesh Power Corporation Limited And 4 Others

Counsel for Petitioner :- Sandeep Arora

Counsel for Respondent :- CSC, Baleshwar
Chaturvedi, Krishna Agarawal

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Vipin Chandra Dixit, J.

Heard Ms. Ishika Arora holding brief of Sri Sandeep Arora learned counsel for the petitioner, Sri Krishana Agrawal learned Advocate for the respondent no. 1 and Sri Baleshwar Chaturvedi learned Advocate has put appearance on behalf of respondent no. 2.

The dispute herein is for recovery of electricity dues from the auction purchaser, the petitioner herein, who had purchased the property in question in an auction sale conducted by D.R.T. Delhi.

The submission of the learned counsel for the petitioner is that the arrears of electricity charges in relation to the property in question cannot be realised from the petitioner, an auction purchaser, as the electricity arrears do not constitute a charge over the property and in general law, a transferee of a premises cannot be made liable for the dues of the previous owner/occupier.

The contention, thus, is that neither the department can realise arrears of electricity charges from the auction purchaser nor it can deny new electricity connection to the petitioner herein.

In reply to these submissions, learned counsel for the respondent department has placed before us the provisions of Clause 4.3(f)(i) of the Uttar Pradesh Electricity Supply Code, 2005 which read as under:-

"Clause 4.3 New Connections-General: (f)(i):- It will be the duty of the seller and of the purchaser to find out the outstanding electricity dues up to the date of sale, and further that both seller and purchaser will be either/or, jointly and severally liable to pay the outstanding electricity dues/obtain No dues certificate."

The said provision imposes co-extensive liability upon the seller and purchaser of the immovable property in the matter of

outstanding electricity dues and provides that both seller and purchaser will be either/or, jointly and severally liable to pay the outstanding electricity dues.

In view of the statutory provisions as contained in the U.P. Electricity Code, 2005, the contention of the learned counsel for the petitioner based on the general law principle that a transferee of a premises is not liable for the dues of previous owner/occupier, cannot be accepted.

Further as per the conditions of the auction sale, the auction purchaser was under obligation to verify about the dues/encumbrances over the property and while purchasing the property in distress sale, he also purchased the liability of the electricity dues.

For the above noted reasons, taking note of the provisions of Clause 4.3 of the Electricity Supply Code, 2005, we do not find any merit in the challenge raised by the petitioner about the action of the electricity department in realisation of the electricity dues in relation to the property in question from the petitioner.

No fault as such can be found in the decision of the department not to provide new electricity connection to the petitioner without clearing the outstanding dues.

The writ petition is, accordingly, **dismissed**.

Order Date :- 30.9.2022

Brijesh